

****The Danish Data Protection Agency has investigated the information obligation of three parking companies****

****Date: 31-01-2024****

****Decision****

****Private Companies****

****No Criticism****

****Supervision / Self-initiated Case****

****Information Obligation****

****CCTV Surveillance****

The Danish Data Protection Agency has concluded its supervision of three selected parking companies' compliance with the information obligation when issuing parking charges. The Agency found grounds to express criticism in two cases.

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****Summary****

In 2023, the Danish Data Protection Agency supervised parking companies' use of CCTV surveillance (camera technology) in connection with the issuance of parking charges. The background for this focus area was that several citizens had complained to the Agency about various parking companies' handling of their personal data.

The Agency selected three larger parking companies and primarily investigated the question of the companies' compliance with the information obligation when a parking charge is issued using camera technology.

****Criticism of Two Parking Companies****

The Danish Data Protection Agency expressed criticism of two companies, as they did not inform the registered individuals (the parkers) about the processing of their personal data when collecting parking charges.

The Agency emphasized that the companies did not inform the parkers about the processing of their personal data and stated that this information should be provided no later than at the time of issuing the parking charge.

It is the Danish Data Protection Agency's view that the data controller must take active steps to fulfill the information obligation. It is therefore not sufficient to have the information available on a website.

****Procedure at One Company Complied with the Rules****

The Danish Data Protection Agency concluded that one company fulfilled its information obligation by linking to the company's privacy policy in their payment demand. Thus, the registered individual (the parker) was timely informed about the processing of their personal data.

****Supervision of Parkzone A/S****

1. In 2023, the Danish Data Protection Agency supervised a number of parking companies' use of CCTV surveillance (camera technology) in connection with the issuance of parking charges.

The background for the selection of this focus area in 2023 was that several citizens had complained to the Danish Data Protection Agency about various parking companies' handling of their personal data.

The Agency has generally understood the complaints as indicating that the individuals concerned were not aware prior to receiving a parking charge that the parking area was under CCTV surveillance, or believed that the CCTV was installed for crime prevention purposes. Furthermore, it emerged from the complaints that the registered individuals had not received sufficient information about the processing of their personal data upon receiving a parking charge.

Based on this, the Danish Data Protection Agency decided to initiate a general supervision of a number of parking companies established in Denmark with the overarching purpose of investigating whether parking companies possibly use CCTV surveillance installed for crime prevention purposes to issue parking charges, and whether the companies observe the information obligation under the General Data Protection Regulation's [1] Article 14 in connection with the issuance of parking charges

using CCTV surveillance (camera technology).

2. By letter dated June 9, 2023, the Danish Data Protection Agency informed Parkzone A/S (hereinafter "Parkzone") that the company had been selected for supervision, and the Agency simultaneously requested Parkzone to respond to a number of questions.

Parkzone provided statements on the matter on June 28, September 22, and November 7, 2023.

Parkzone has submitted images of the signs used in the facilities, as well as an example of a payment demand.

Parkzone has stated that the company uses camera technology in the parking facilities it manages to issue parking charges. Fixed surveillance cameras with built-in software are used to scan license plates. If the software detects a license plate, a still image of the license plate in context, along with a number of metadata, is sent to Parkzone's servers, after which the image is blurred.

Parkzone has informed about the processing of personal data that the company processes information about, among other things, the vehicle's registration number, images of the vehicle from the front and back, the time of entry and exit, and location when the car enters and exits the parking facility. If payment is not made correctly, identification information about the owner of the vehicle is also processed.

The purpose of collecting personal data is—as stated in Parkzone's privacy policy—primarily to issue correct parking permits, collect payments, and manage agreements regarding parking arrangements. Parkzone has indicated that the information obligation is fulfilled at all facilities through signs in each parking area and in any letters sent out.

Parkzone has also stated that several parking signs have been installed both at the entrance to the parking facilities and at the exit, as well as around the facilities. Users of the facilities thus encounter signs with information about data processing before the camera registration of the vehicle takes place. The signs refer to Parkzone's privacy policy via a short URL (www.parkzone.dk/datapt). At several parking facilities, a QR code is additionally provided on the signage, which, when scanned, leads directly to the privacy policy on the website. A link to the privacy policy is also displayed on payment machines and iPad solutions. When sending a payment demand, a link to Parkzone's privacy policy is also included in the letter to the motorist.

The Data Protection Agency has established that the following is stated in Parkzone's privacy policy (section 5) regarding the source of personal data:

"The information is initially collected from the vehicle that enters and exits the parking facility.

Additional information is obtained from the Digital Motor Register. Information may also originate from your inquiry to us (e.g., via payment machine, iPad, complaint form, etc.)."

3. Based on the information provided by Parkzone, the Data Protection Agency assumes that Parkzone solely uses camera technology for the operation of the relevant parking areas, and that no CCTV surveillance has been installed for crime prevention purposes. In a decision dated June 27, 2022 (Data Protection Agency case no. 2019-41-0053), the Data Protection Agency addressed Parkzone's compliance with the rules in the General Data Protection Regulation regarding, among other things, the obligation to provide information in connection with the company's use of automatic license plate recognition for the operation of parking areas. The Data Protection Agency found in this context that the processing of personal data was carried out in accordance with Articles 12-14 of the General Data Protection Regulation.

On this basis, the Data Protection Agency finds no reason to take further action. However, the Data Protection Agency must draw Parkzone's attention to the recommendation regarding Parkzone's privacy policy, which is stated in the Agency's decision of June 27, 2022, which Parkzone does not appear to have complied with.

Furthermore, the Data Protection Agency notes that Parkzone may consider clarifying in its privacy policy, to avoid misunderstandings, that the information is initially collected from an image of the vehicle. The Data Protection Agency notes that the Agency has not assessed whether Parkzone's processing of personal data is otherwise in compliance with data protection regulations.

[1] Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation)